

*A Battery at
Close Quarters*

Neil



*A Battery at
Close Quarters*

Neil



The Project Gutenberg eBook of A battery at close quarters

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: A battery at close quarters
a paper read before the Ohio Commandery of the Loyal Legion,
October 6, 1909

Author: Henry M. Neil

Contributor: John B. Sanborn

Release date: January 23, 2010 [eBook #31048]
Most recently updated: January 6, 2021

Language: English

Other information and formats: www.gutenberg.org/ebooks/31048

Credits: Produced by Stephanie Eason and the Online Distributed Proofreading Team at <https://www.pgdp.net>. (This file was produced from images generously made available by The Internet Archive/American Libraries.)

*** START OF THE PROJECT GUTENBERG EBOOK A BATTERY AT
CLOSE QUARTERS ***

A Battery at Close Quarters

A Paper

**READ BEFORE THE OHIO COMMANDERY
OF THE LOYAL LEGION**

October 6, 1909

BY

HENRY M. NEIL

Captain Twenty-second Ohio Battery

**COLUMBUS, OHIO
1909**

**THE CHAMPLIN PRESS
COLUMBUS, OHIO**

A BATTERY AT CLOSE QUARTERS.

BEING THE STORY OF THE ELEVENTH OHIO BATTERY AT IUKA AND CORINTH.

During the Civil War artillery projectiles were divided as to structure into *solid*, *hollow* and *case shot*. The solid shot were intended to batter down walls or heavy obstructions. Hollow projectiles, called shell and shrapnel, were for use against animate objects; to set fire to buildings and destroy lighter obstructions. Under the head of case shot we had grape and canister. Grape shot is no longer used; being superseded by the machine gun. Canister is simply a sheet iron case filled with bullets and is effective only at very short ranges.

The foremost European military writer, Hohenloe, states that in the Franco-Prussian war, the batteries of the Prussian Guard expended about twenty-five thousand shells and one canister, and that this one canister was broken in transport.

In the official reports of the recent Russo-Japanese War we find that the Arisaka gun, which was the Japanese field piece, has a range of 6,600 meters. The Russian field pieces were said to give good results at 8,000 meters, or five miles. The Japanese, and later the Russians, made a great feature of indirect fire. Having located a mass of the enemy, probably beyond two ranges of hills, they would stake out a line indicating the direction, then secure the range by the use of shells which gave out a yellowish vapor on bursting. This vapor being observed and signaled by scouts also indicated the necessary angles of departure from the line of stakes and enabled the artillerymen, miles away from actual contact, to complacently try experiments in battle ballistics with very little fear of being interrupted by an enemy.

The range of modern field artillery being officially reported at five miles, permit me to take you back to a day, over forty-seven years ago, when an

Ohio battery, placed in the extreme front of battle, fought at less than fifty yards.

The village of Iuka lies in the northeast corner of the State of Mississippi. The neighboring country is broken and, in 1862, was covered with forests. Northwesternly from Iuka lies the village of Burnsville and further on the little city of Corinth, close to the Tennessee line. In 1862 Corinth possessed strategical advantages which caused it to become a large supply depot for the Federal armies. South of Corinth and southwest of Iuka, the town of Jacinto was located.

On the eighteenth of September, 1862, General Sterling Price lay at Iuka with an army of about twenty thousand Confederates. General E. O. G. Ord's force lay between Burnsville and Corinth and had just been reinforced by Ross's division. Burnsville was seven miles from Iuka. General Rosecrans lay at Jacinto, nineteen and one-half miles from Iuka.

General Grant, taking advantage of this situation, ordered a combined attack by Ord and Rosecrans upon General Price. Under this order Rosecrans moved from Jacinto at 3:00 A. M. September 19th, and was within striking distance of Price's patrols by noon. Ord was to attack from the west and draw Price in that direction while Rosecrans was to move to the rebel rear by the Jacinto and Fulton roads and cut off their retreat. Neither of these Union armies was powerful enough to make, alone, a successful attack upon Price.

The strategical plan of attack above outlined was not carried out. Ord's strategy never reached the domain of tactics, for he went into camp seven miles west of Iuka and the head of Rosecrans' column was attacked by the entire army of Price. It was with the head of this column that the Eleventh Ohio Battery marched into the fight. Anticipating a combined engagement the head of the column pushed its innocent way into the maw of the entire rebel army. We had to fight first and think afterward. Price had hours to choose his positions and, incidentally, he chose our position also. We didn't have time to change it.

"Rapidity of movement and surprise are the life and soul of the strategical offensive." That maxim reads well but, in practice, it is important to provide

against being surprised by the other fellow before you spring your surprise on him.

For several miles in the afternoon of the 19th of September the advance of Rosecrans' column was warmly contested. The enemy's sharp-shooters occupied every point of vantage, making the last five miles a steady contest. The cavalry had long ago been driven in. A few companies formed an advance skirmish line only a short distance from the main column. Near the front of the column marched the Eleventh Ohio Battery. The men knew that an engagement was imminent but their immediate front was unknown and unexplored. As usual, we had no maps. While marching through a defile at the crest of a thickly wooded hill we noticed that the rifle fire in front was suddenly increased. But there was no pause to reconnoiter. The battery marched from the defile into within short range of Price's whole army. Instantly an entire rebel division concentrated its fire on the battery with the intention of annihilating it before it could unlimber.

As we emerged from the cut this sudden concentration of rifle fire gave me the impression of being in a violent hail storm. Riding at the head of the column I turned my head to look for the men, expecting to see half the men and horses down. To my great joy I found all uninjured. The storm of bullets was passing just over our heads. We hastened to get into position and unlimber before they could get the range. Just in front of us the road turned to the right. We turned to the right into the brush and took position facing this road. As our men were clearing the hazel brush for positions for their guns a Wisconsin battery appeared about three or four hundred yards to our left and unlimbered; but it suddenly limbered up and galloped to the rear without having fired a shot. It had been ordered back, leaving the Eleventh the only Union battery in the battle.

The Fifth Iowa took position just at our right. The Twenty-sixth Missouri prolonged the line to the right of the Fifth Iowa. On our left the Forty-eighth Indiana formed a line that swung somewhat forward at its left flank. Our side of the fight began with these three regiments in position. The front thus hastily formed did not permit of further extension, owing to the nature of the ground.

A little later the Fourth Minnesota and Sixteenth Iowa were, respectively, echeloned in rear of the left and right flanks. The total force actually engaged was 2800 Union and 11,000 Confederates.

When the Eleventh went into position Lieutenant Sears was in command. As junior First Lieutenant, I had the right section, while Second Lieutenant Alger fought the center section. Of the acting Second Lieutenants Perrine had the left section and Bauer the line of caissons. During the fight I succeeded to the command when Sears went to the rear with a wound. Alger was captured. Bauer was killed.

The battery had taken position in line from column under an infantry fire from an entire division at ranges of from 200 to 400 yards. Shells from the rebel artillery were also crashing through our line. We opened fire at first with shell. This shell fire proved so effective that a rebel assault on the battery was ordered. A division of Price's army rushed to the charge. The battery changed from shell to double charges of canister. The effect of the canister was terribly increased because of the rebel method of charging in masses. Had the line to the left of the battery held its front the assault on the battery would have been impossible of success. But Col. Eddy of the 48th Indiana was killed and the survivors of his regiment were swept back by overwhelming numbers. The left flank of the battery was thus left bare and unsupported. On the right the Fifth Iowa was cut to pieces. Only eleven officers and a handful of men remained. With the line melted away the battery found itself facing in three directions and battling with masses on three fronts. It had a rear but no flanks. The guns were being worked with greater speed and smaller crews. Cannoneers were falling. Other cannoneers coolly took their places and performed double duty. Drivers left their dead horses and took the places of dead or wounded comrades, only to be struck down in turn. Of eighty horses only three remained standing and a withdrawal of the guns was impossible. The surviving men were too few to do more than work the guns. Finally the charging hordes, checked and mutilated again and again in front, to right and to left, pressed close. Eight thousand men against two score. On the fifth charge the survivors were finally choked from the guns they would not abandon.

General Rosecrans in his notice, in orders, of the facts and results of the battle of Iuka, states that the Eleventh Ohio Battery participated:

“Under circumstances of danger and exposure such as rarely, perhaps never, have fallen to the lot of one single battery during this war.”

In the same order the commanding General further states:

“On a narrow front, intersected by ravines and covered with dense undergrowth, with a single battery, Hamilton’s division went into action against the combined rebel hosts. On that unequal ground, which permitted the enemy to outnumber them three to one, they fought a glorious battle, mowing down the rebel hordes until, night closing in, they rested on their arms on the ground, from which the enemy retired during the night, leaving us masters of the field.”

General Hamilton’s official report, in describing the action of the Union left flank, states:

“Colonel Sanborn, in command of the first brigade, most gallantly held the left in position until, under a desolating carnage of musketry and canister, the brave Eddy was cut down, and his regiment, borne down by five times their numbers, fell back in some disorder on the Eightieth Ohio, under Lieutenant-Colonel Bartilson. The falling back of the Forty-eighth exposed the battery. As the masses of the enemy advanced the battery opened with canister at short range, mowing down the rebels by scores, until, with every officer killed or wounded and nearly every man and horse killed or disabled, it fell an easy prey. But this success was short lived.

“The hero Sullivan rallied a portion of the right wing, and, with a bravery better characterized as audacity, drove the rebels back to cover. Again they rallied and again the battery fell into their hands; but with the wavering fortunes of this desperate fight the battery again fell into our hands, and with three of its guns

spiked and the carriages cut and splintered with balls, it is again ready to meet the foe.”

At the close of the engagement the ground in front of the battery showed heaps of dead bodies. Statistics show that the Confederates’ loss in this engagement amounted to eight hundred in killed and wounded. While actual inspection of the field of carnage indicated that a large proportion of the slain had met their death from the canister of the Eleventh. The Brigade Commander’s report states that the battery fired with great rapidity and extraordinary accuracy.

The battery entered the fight with ninety-seven men and five officers, commissioned and acting. Of these, eighteen were killed and thirty-nine wounded, many mortally. A number of the wounded had been bayoneted at their guns. Of the cannoneers alone, forty-six were killed or wounded. Forty-six out of a total of fifty-four. More than five men out of every six.

The statistics compiled by Col. Fox in his “Regimental Losses in the American Civil War,” show that this day’s record in killed and mortally wounded equaled, within one, the total killed in any light battery during its entire term of service. This work also states that the losses of the Eleventh at Iuka were 22% greater than those sustained by any other light battery in any one engagement during the war.

You have been familiar with death and wounds and the aching pain of deep sympathy for suffering comrades. Therefore I will not depict the tortures and individual heroisms of those artillerymen who fell, to die or partly recover. Those who died left a legacy of glory and honor to posterity and to their country. That legacy is of greater value than the greatest riches, for it will always endure, and the martyrs of the civil war, the dead and the living, will proudly bear to the throne of God those scars which were the price of their country’s salvation.

One singular feature of this fight was that but two members of the battery were taken prisoners. The guns were captured and recaptured several times before dark. The battery men had never abandoned them voluntarily. One Confederate prisoner afterward said:

“Those battery boys had so much spunk that we took pity on a few who were left.”

It may have been this respect for the courage of the artillerymen which induced the Confederates to let the few survivors go. But could they have looked into the future and seen these same men and guns at Corinth only fourteen days later, they would probably have dropped every other work and secured them while they had this one chance.

After attending to the wounded, the night after the fight at Iuka, all members of the battery were ordered to a rendezvous. They were all assembled by 5 A. M. and, after reverently burying our dead, the men turned their attention to securing the guns and equipments scattered over the field. The drivers cried softly as they removed the harness from their faithful mounts. In one mass lay eighteen dead horses. These three teams, instead of trying to escape, had swung together and died together. My own horse received seven wounds. Toward the close of the engagement he sank down and was left for dead. Some time during the night he revived and was found by an officer of Rosecrans' staff who rode him until daylight. This horse survived the war two years, then suddenly dropped dead in his stall. A bullet had finally worked its way into an artery.

Of the other three surviving horses one had an interesting history. He was a fine strong bay who always worked as near leader. At our first battle, New Madrid, this horse's rider was literally cut in two by a thirty-two pound ball. The horse kept his place, covered with the blood of poor James Bibby. After this baptism he seemed to bear a charmed life. He was mustered out with the battery, still able to do full duty.

Early in the morning after the battle General Rosecrans ordered me to refit the battery as rapidly as possible. After the guns' spikes were removed the pieces were found to be in serviceable order and work on the splintered carriages was begun.

A description of our six guns may be of interest. They were:

2 rifled 6 pounders, bronze, (James pattern), (calibre 3.67, weight of ball, 14 lbs.)

2 smooth bore 6 pounders, (calibre 3.67, weight of ball, 14 lbs.)

2 twelve pounder Howitzers, (calibre 4.62.)

These guns would soon be needed again, for General Rosecrans had promised us more work in the near future at Corinth. In this emergency I was allowed to draw horses and equipment from the nearest available sources without regular requisition. General Rosecrans' foresight in stretching regulations further permitted me to obtain recruits from my brigade commander, and the rejuvenation of the Eleventh was soon under way. The new men were drilled as hard as their other duties permitted. The battery was ready for the march to Corinth by the evening of October 1st.

General Rosecrans had left orders with Colonel Crocker, who was left in command at Iuka, to furnish the Eleventh with an escort to Corinth. On the evening of October first I found that an escort could not be secured for two or three days, as Colonel Crocker had only enough men present for guard and picket duty.

My orders were to report at Corinth as soon as possible. The news from there indicated that a big battle was imminent. It also indicated that the Eleventh ran some risk of capture if it went through alone. But there was no way to avoid that risk. I therefore drew some extra horses, sent mounted cannoneers forward as an advance guard, and started for Corinth on the morning of October second. I felt very uneasy at starting on that march for I knew that, if I met one of the numerous strong bands of guerrillas or a Confederate force, I might be shot up first and court-martialed afterward.

Nothing unusual happened during the day's march. By four P. M. we were inside our own lines and a little later the battery was assigned to a strange brigade. By the morning of October third I managed to secure an order sending us to our old brigade. It looked much smaller than before Iuka but that made us think all the more of it.

After the failure of his Napoleonic tactics at Iuka, General Price retreated to Ripley, Mississippi, where he united with a still stronger rebel force, under General Van Dorn. Van Dorn assumed command of the united forces and pushed forward toward Corinth with intent to overwhelm Rosecrans.

Corinth was surrounded by extensive works constructed by Beauregard when he held that position against Halleck's army. Rosecrans had too few troops to man these works but had taken the precaution to hastily construct an inner line of fortifications, which was traced about a mile west from the center of the village.

The cavalry had promptly notified Rosecrans of the formidable rebel movement northward and he had hurriedly prepared to receive it. About 10 A. M. on October third we moved from our camp east of Corinth, marching through the town to a designated point at the right of the Federal lines. These lines occupied the outer line of works built by Beauregard.

At about 2 P. M. we received the order to fall back to the new line, nearer Corinth. In executing this movement I saw several heavy columns of rebels approaching, en route with the same objective. It looked for a time as if we might be surrounded, but nothing resulted except a few singing bullets which did no harm. It was evident that the rebels felt that we were in a trap and they were pursuing a prearranged plan in springing it. As we reached the northwestern suburb of Corinth we swung to the left and continued until we reached the right wing of the new line, where we selected a fine position on rising ground with a clear field of fire and a magnificent view.

The new defensive line of which we had just formed a part, presented a concave front to Van Dorn's army. Our elevated position enabled the batterymen to see both lines of battle. Being at the Federal right flank we became one of the horns of the dilemma which confronted Van Dorn's hosts the next day.

Van Dorn's magnificent series of assaults against our line began about 9:30 the next morning. The masses of the enemy first attacked our left flank and were repulsed. Then they assailed our center, penetrated it, but were at length driven back into the cross fire of our artillery.

By 2 P. M. the attacks against the left and center had exhausted themselves and the peril of a broken center was narrowly averted. Then the rebels, having concentrated for another supreme effort, bore down upon Hamilton's division on the right. This was good tactics, because our right had been weakened by sending troops to the imperilled center.

The now familiar sight of masses of rebels, screaming the familiar yell, appeared in our front. As the mass approached I recognized them and called to the men: "Boys, there are the same troops that fought us at Iuka; are you going to let them touch our guns today?" The yell of rage that went up was more ominous than a rebel yell ever tried to be.

At six hundred yards the Eleventh opened with shell. The men worked like tigers in their desperate resolve that their beloved guns would never again feel the insult of a rebel touch.

Three times they charged and three times they were repulsed. Each time they came so close that we resorted to double charges of canister and never a rebel reached the muzzles of our guns. By four o'clock the Confederates were staggering back or surrendering in squads.

From some prisoners taken at Corinth it was learned that they were still unnerved from the moral effect of their assaults at Iuka. Those prisoners stated that, as they went into the assault, they recognized the bark of the guns of the Eleventh Ohio. Before these guns they had seen hundreds of their comrades fall like wheat before the harvester. They felt that they could not again silence the guns of the Eleventh. It had taken five assaults to do so when the odds were many to one.

At daylight of October 5th, after a night spent in convoying prisoners and caring for the wounded, we started in pursuit of the remains of Price's and Van Dorn's armies. During that day's march our army simply gathered in throngs of rebels. The retreating force had been three days without regular rations and were too weak to escape.

For two long days and nights we pressed our foes until our condition was hardly better than theirs. At one A. M. on the second night's march, we were stumbling along, almost dead with fatigue, when suddenly a band struck up the familiar song—John Brown's Body. Other bands joined; we all woke up and were soon swinging along without a thought of our condition. I have often wondered what moral effect this musical demonstration, at dead of night, had upon our quarry.

It took us three days to return to Corinth, horses stumbling with weariness, men asleep in their saddles, tired but happy, a victory won against odds.

“AN ARMY EXPERIENCE”

The following appreciative remembrance of the action of the Eleventh Ohio Battery at battles of Iuka, September 19, 1862, and Corinth, October 4, 1862, appeared in the columns of the St. Paul (Minnesota) Pioneer Press in 1884. Having been preserved by a Companion of the Ohio Commandery, it was read by the Recorder, Major Thrall, at the Commandery monthly meeting of October 6, 1909, as the Recorder's contribution to the discussion of an account of the part of the Eleventh Ohio in those battles, which had just been presented by Captain Neil, and by general request is published by the Commandery, without the advice or consent of Companion Neil.

GEO. A. THAYER,
A. B. ISHAM,
L. M. HOSEA,
Publication Committee.

“AN ARMY EXPERIENCE.

“No scenes of life are so deeply and indelibly impressed upon the memory as those which occur in war and battle. All the mental faculties seem to be melted into a fused condition by the excitement of the occasion, so that a full and deep impression of all the principal events is made and then to be suddenly turned to adamant so that the impression must remain as long as the faculties endure. There is not a soldier of the late war, who took part in any engagement, who does not have impressed upon his mind some event or scene which then transpired that is just as vivid and fresh today as on the day it was made. And when the memory is turned toward it by the suggestion of any other faculty—by the sight of some party connected therewith, or hearing kindred sounds, or by those more hidden spiritual influences less understood that at times cause to form in order and pass in review before the mind all the leading and exciting incidents of past life, these events and scenes are again displayed with all the vividness and strength of first impression. These thoughts were suggested to the writer upon meeting Lieutenant H. M. Neil of the Eleventh Ohio Battery at the meeting of the Society of the Army of the Tennessee at St. Louis, in 1882. Twenty years had passed since I had seen his face, and I had reckoned him among the brave spirits of the war which had gone to rest. When I saw him last before this, he was commanding his battery in the thickest of the fight at the battle of Corinth about 11 o'clock in the forenoon of October 4, 1862. His rank was that of Second Lieutenant. All officers of higher grade were absent in hospital from wounds received fifteen days before at Iuka, in which battle this battery of a few more than 100 men had eighteen killed and fifty-two wounded, and out of 148 horses had but three left standing at the close of the engagement. The battery was captured by the rebels and recaptured by our troops. Lieutenant Neil was the only commissioned officer on duty at the close of the engagement, and he had been wounded twice with shell and twice with bullets—severe flesh wounds. He was besmeared with blood. The Lieutenant was, notwithstanding full of pluck. He said the next morning, “If I can have one hundred men detailed from the infantry and horses furnished, I will have the battery in fighting trim again

in two weeks.” Infantry soldiers readily volunteered upon call to man the battery, and horses were furnished by the Quartermaster, and on the afternoon of the 3d of October—fourteen days from the annihilation of the battery the battle of Corinth was fought and the Lieutenant having marched up from Iuka without escort, came upon the field with his battery fully manned, equipped and drilled, amid the hurrahs and tears of the infantry that had seen it destroyed under the terrible fire of the 19th of September, and who now seemed to feel that the battery men, horses and all, had come back from the regions of the dead to aid in the terrible struggle now going on between the same armies.

“The Lieutenant received the heartiest congratulations of all officers who had been with him in the battle of Iuka. While receiving those of the writer he said: “I want you to stay right by my battery with your regiment when it goes into action here, and if you will no rebel battalions can take it this time.” There was a promise to comply with his request. On the following morning when the irresistible assault of the rebel army came, the Eleventh Ohio Battery was in position commanding the whole rebel line and the Fourth Minnesota Infantry in line flat upon the ground close in its rear. Lieutenant Neil was seated on his thoroughbred from twenty to forty feet in front of the battery, between the line of fire of the guns of the middle section. He requested the Colonel of the infantry to keep his eye upon him and whenever he beckoned with his saber, to have the infantry rise up and deliver their fire.

“Now the assaulting lines of the rebel armies come on like a wave of the sea, rolling along over breastworks and batteries. He orders the men to open fire and, still in his advanced position, waves his hat constantly to the advancing lines of rebels, and shouts, ‘Come on! Come on! if you think you can play Iuka over again.’ A strange coincidence was that the same rebel battalions came against this battery that had captured it on the 19th of September. But they could not come on here. Three times the Lieutenant signaled the infantry to rise and fire, and each time they rose to hear him say, ‘No, no, they have broke again.’

“For a half mile in front of this battery, after the battle, were large areas covered with the dead and dying, which told with what terrible effect it had been served during the assault.

“The sight of the Lieutenant, after twenty years, brought up these occurrences—this whole scene, and made it as fresh as if it had transpired yesterday, and made me resolve to commit it to writing before I died, feeling that none of us had done him justice in our reports of these battles.

“The scene at Corinth, if it could be placed on canvas, would be thrilling even to strangers. An elegant thoroughbred Kentucky horse fully caparisoned, on which the Lieutenant is sitting erectly, with his hat in his hand, is standing out in front of the battery between the lines of fire of the two center guns, seemingly conscious that if he moved to the right or left he would be torn to atoms, and trusting himself wholly to his rider, the Lieutenant is waving his hat in the air, and bidding defiance to the foe; advancing in masses and lines upon his positions, the artillerymen with superhuman power and skill, amid the smoke that rolled incessantly from the muzzles of every gun, loading and firing, is a picture before the mind at this distance plainer than can be placed on canvas by the most skillful artist. It is such men and such services that saved this nation in the war. They were not conspicuous nor vain-glorious, perhaps not heard of before the war, nor afterwards; but in the midst of it, meeting the full demands of the great occasion and leaving the reward to posterity.

“What this officer did after this battle in the war, I know not. He passed from my sight when we withdrew from that line of battle, and twenty years passed before I saw his face again, and during all this time never heard a word concerning him. When I met him it was my privilege to name him as one of the vice presidents of our society, showing that time had in no respect obliterated or dimmed the memory of his services.

JOHN B. SANBORN, Commanding,

First Brigade, Seventh Division, Army of the Tennessee.

ST. PAUL, Jan. 14, 1884.”

Transcriber's Notes:

Additional spacing after some of the quotes is intentional to indicate both the end of a quotation and the beginning of a new paragraph as presented in the original text.

*** END OF THE PROJECT GUTENBERG EBOOK A BATTERY AT
CLOSE QUARTERS ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.